



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11741

EXPIRATION DATE: December 30, 1996

(FOR RENEWAL, SEE 49 CFR SECTION 107.105)

1. GRANTEE: Park Metallurgical Corp.
Detroit, MI
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the one-time reuse of UN1A2 drums which do not conform to the minimum thickness specified in Section 173.28(b)(4) for the transportation in commerce of certain Division 6.1 materials, subject to the limitations and special requirements specified herein. **This exemption will not be renewed after expiration date specified above** and provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.28(b)(4).
5. BASIS: This emergency exemption is based on the application of Park Metallurgical Corp. dated August 1, 1996, submitted in accordance with 49 CFR 107.113 and a determination that it is necessary to prevent or minimize a serious economic loss.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Sodium cyanide mixtures	6.1	UN1689	I

7. PACKAGING AND SAFETY CONTROL MEASURES:

- a. Packagings prescribed are UN1A2 metal drums of 57 or 114 liters (15 or 30 gallon) capacity containing not more than 45kg or 90kg (100 pounds or 200 pounds), respectively.
- b. Each drum is authorized for a maximum of two shipments, subject to the following conditions:
 1. Drums must be qualified for reuse in accordance with § 173.28 except for subparagraph (b) (4).
 2. Shipments are limited to a destination no more than 800 miles from point of origin.

8. SPECIAL PROVISIONS:

- a. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.
- b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.
- c. Packages shipped under the provisions of this exemption must be marked "DOT-E 11741".

d. No drums used under authority of this exemption may be constructed after the effective date of this exemption.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

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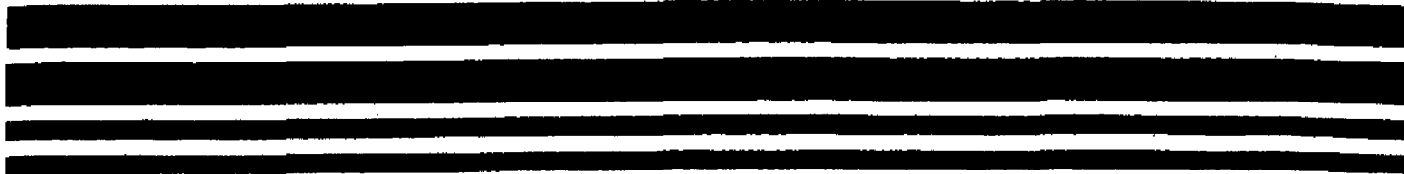
Alan I. Roberts
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

August 29, 1996
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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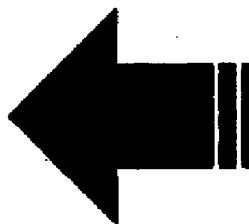


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SEP 23 1996

DOT-E 11744

EXPIRATION DATE: October 31, 1996

1. GRANTEE: Zeneca Inc.
Wilmington, Delaware
2. PURPOSE AND LIMITATION: This exemption authorizes the one-way, one-time transportation in commerce of six non-DOT specification steel bins containing waste yellow phosphorous under a water blanket. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Part 173.243(d) in that a non-DOT specification packaging is not authorized.
5. BASIS: This exemption is based on the application of Zeneca Inc. dated August 12, 1996, submitted in accordance with 49 CFR 107.113 and a determination that it is necessary to prevent a serious economic loss.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Phosphorous, yellow, underwater	4.2	UN1381	I

7. PACKAGING AND SAFETY CONTROL MEASURES:

- a. PACKAGING - Waste yellow phosphorous is packaged in six steel bins with a protective water blanket. Bins are made of welded 3/8" steel construction. Bin dimensions are 30" high, 8' long and 5' wide. Each bin contains approximately 4,600 pounds of waste phosphorous.
- b. OPERATIONAL CONTROLS -
 - i. Each portable bin will be transported inside a bulk bin authorized to transport hazardous waste.
 - ii. An emergency response escort vehicle will escort each shipment.
 - iii. One-way, one-time transportation is authorized for six bins by highway from Zeneca's Cold Creek facility in Buck, Alabama to Rollins Environmental in Baton Rouge, Louisiana.

8. SPECIAL PROVISIONS: Zeneca Incorporated must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard the motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

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Continuation DOT E-11744

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No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

SEP 23 1996



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

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